Privacy Policy

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Before you read our full Privacy Policy below, we'd like to share a couple thoughts about how we view, protect, and make all efforts to ensure your privacy as it pertains to Kids Discover products and services.

Our worlds, and our lives, are increasingly connected with the Internet. For better or for worse, this means that more and more of our information is available online. The importance of keeping your personal information secure, and private, has never been more important. That's why Kids Discover makes an effort to keep the amount of data we collect on users to a minimum, and why we make strong efforts to protect and secure the data we do collect. We encourage our users to read our full Privacy Policy below, but we do want to highlight a couple crucial points about our privacy practices:

• We do not rent or sell any personal information we collect from our users to any third parties for monetary purposes.

• We do not have advertisements on or in any of our products, apps, or websites because we do not believe in advertising to children. .
• We limit the information we collect and retain. The only information we collect from students is first name, last name, username, password, and classroom code. We do not store email addresses of individuals under the age of 18 years old.
• The personal information that we collect from adults is used for account registration, account-related access, and internal marketing and reporting efforts made directly from Kids Discover to our user base, such as email marketing and site usage.

Additionally, we have signed the K-12 School Service Provider Pledge to Safeguard Student Privacy. You can learn more about the pledge here.

If you have any questions about our Privacy Policy, please feel free to email us at questions@kidsdiscover.com. We'd be more than happy to answer your questions, concerns, or help clarify the Privacy Policy below.

Sincerely,

Ted Levine
President & CEO
KIDS DISCOVER

PRIVACY POLICY

Effective Date: February 1, 2025

INTRODUCTION

Your privacy is very important to us. As a family-owned and operated company, you can be certain that we approach your personal privacy and the security of our user data with care.

You'll notice that there is no advertising on, or in, any of Kids Discover's products, apps or websites. We do not believe in advertising to children.

Please read this Privacy Policy carefully to understand how we will treat your personal data (defined below) before you start to use our Services or communicate with us outside the Services. This Privacy Policy explains how Kids Discover, LLC ("**Kids Discover**", "**us**", "**we**" and "**our**") will collect and use your personal data when you use our website including kidsdiscover.com, and all related websites and web-based applications (our "**Sites**") and any other technologies, features, content, and services we offer (collectively, our "**Services**"), and your rights in relation to that personal data. Changes to this Privacy Policy are discussed at the end of this document. If you have any questions about our Privacy Policy, please feel free to email us at questions@kidsdiscover.com.

This Privacy Policy incorporates our Terms and Conditions. To keep things simple, any capitalized terms not otherwise defined in this Privacy Policy have the meanings given to them in our Terms of Service.

This Privacy Policy does not apply to third-party websites, products, or services, even if they may link to our website or if our site links to them. We recommend that you review the privacy practices of those third parties before connecting accessing third party websites and sharing any personal data.

If you are a visually-impaired individual, an individual with another disability, or an individual seeking support in another language, you may access this Privacy Policy by emailing us at questions@kidsdiscover.com.

A note to minors: If you are under the age of 18, please get permission from your parent/legal guardian or school before using the Kids Discover Services or sending any email to us. You must be 18 or older to order a subscription to Kids Discover Online. We will not sell or market directly to minors and always seek authorization from either a parent, legal guardian, or school whenever we identify that a minor attempts to purchase a Kids Discover product or service. If we discover that we have collected any personal data from

a child under the age of 18 without parental or school consent, we will suspend the associated account and/or remove that information from our database as soon as possible. By purchasing a Kids Discover product or service, you represent and warrant that you are 18 years of age or older. For more information, please review the **Children's Data** section below and our separate Children's Privacy Notice posted online.

A note to schools and districts: Whenever we collect student personal data, we do so in support of the educational purposes for which Kids Discover Online is designed. Such information is only collected in conjunction with the use of Kids Discover Online (for account registration, account access, Lexile ® Leveled Reading designations, and performance on Kids Discover Online's Assessments feature), an optional feature that only schools and districts can access.

Linkable Table of Contents

This Privacy Policy is provided in a layered format. You can jump to a specific section by clicking on the section below:

Collection of Personal Data	We may collect personal data when you interact with us through our Services or by other means.
Disclosure of Personal Data	We may disclose your personal data to certain third parties, such as our service providers and advertising partners.
Summary of Kids Discover Data Use	We provide a summary of our data practices.
Data Security	We use reasonable and appropriate technical and organizational measures to protect your personal information.
Data Retention	We will retain your personal data only for as long as is necessary for the purposes set out in this Privacy Policy, and use reasonable and appropriate technical and organizational measures to protect your personal data.
Cookies & Other Tracking Technologies	We collect information about your use of our Sites through cookies and other

	tracking technologies.
Your Choices	We explain how you may exercise choices related to your information.
State-Specific Notices	We provide additional information for residents of California, Nevada, Colorado, Connecticut, Iowa, Montana, Nebraska, New Hampshire, New Jersey, Oregon, Texas, and Virginia.
Children's Data	In compliance with the Children's Online Privacy Protection Act ("COPPA"), we do not collect personal data from children under 18, without a parent or guardian's consent, or that of a school if applicable.
Links to Third Party Websites	Our Services may contain links to websites that are not operated by us and that are subject to third party privacy policies and other terms.
International Transfers	If you are located outside of the United States and choose to provide information to us, we transfer the data to the United States and process it there.
Changes to This Policy	Changes to this Privacy Policy will become effective on the date they are posted.
Contact Us	You may contact us for comments or questions in various ways.

* * *

1. **COLLECTION OF PERSONAL DATA**

Unless otherwise indicated, for the purposes of this Privacy Policy, "personal data" means any information that relates to an identified or identifiable individual. The types of

personal data we may collect will vary depending on how you interact with our Services. Personal data does not include publicly available information; lawfully obtained, truthful information that is a matter of public concern; information that has been de-identified, or aggregate consumer information. “Publicly available information” includes information that is made available from federal, state, or local government records; information that a business has a reasonable basis to believe is lawfully available to the general public, either through widely distributed media, or by the individual; and information that is made available by a person to whom the individual has disclosed the information if the individual has not restricted the information to a specific audience. Aggregate information is information that we collect about a group or category of products, service, or users that is not personally identifiable or from which individual identities are removed.

a. **Information we collect from you**

Registration information. During the registration process of any of our subscription types, we ask our subscribers to provide us with name; email address; address; affiliation with a school or district (if applicable); virtual classroom number; phone number; payment card and other billing information (such as card image, card number, cardholder name, expiration date and card verification code). We use this contact information to send users service-related announcements on rare occasions when it is necessary or advisable to do so. For instance, if we perform routine maintenance, we might send an informational email. Additionally, subscribers can create a username and password during the registration process, or, if they prefer, we may assign these for them. We use usernames and passwords of subscribers’ accounts to authenticate logins, allow access to the paid content and monitor subscription compliance. The username is also used to authenticate Users when requesting technical support. The passwords are all encrypted when stored.

- **Information collected when using Kids Discover Online.** As part of certain subscriptions, schools and districts will use the individual accounts system which allows students and their teachers to share a virtual classroom. Student and teacher accounts are organized by classrooms, which are created by the teachers. For these accounts, we ask the students to enter their first and last name, their username and password, and their classroom code. We also require the teachers’ email for password recovery. For more information about our practices with respect to children’s data, please review the **Children’s Data** section below and our separate Children’s Privacy Notice posted online.
- **Contact information for newsletter and surveys.** When you use our Services, you may choose to register to receive newsletters, promotional offerings or surveys, which requires your contact information. Such messages may include pixel tags and link tracking. The contact information you submit will not be shared, sold or used for any

other purpose and you may opt out at any time. Registration to newsletters, promotional offering and surveys are not intended for children under the age of 13.

- **Communication information.** We may retain certain information from users when they send us messages through our system or by email. We only use such information for providing the Services or support requested. Please note that certain features we offer include an option to provide us with feedback on your experience. The feedback feature does not identify the individual user submitting it. The feedback option is voluntary and the information you submit to us will only be used for improving these features. If we receive personal data through a feedback form, we take steps to immediately delete that information.

- **Information we collect automatically**

  Our Services may use cookies and other tracking technologies such as web beacons, embedded scripts, and tags, which collect information from you automatically as you use our Services, including:

- **Browser and device data**. When you use our Services, we may automatically collect information such as IP address, device identifier, device type, operating system and Internet browser type, screen resolution, operating system name and version, device manufacturer and model, language, plug-ins, and add-ons.
- **Usage data**. When you use our Services, we may automatically collect information such as browsing history, time spent on the Sites, pages visited, links clicked, language preferences, patterns of use, and the pages that led or referred you to our Site. We also collect information about your online activities on websites and connected devices over time and across third-party websites, devices, apps, and other online features and services. For example, we use Google Analytics on our Sites to help us analyze your use of our Sites and diagnose technical issues. Please review **Cookies and Other Tracking Technologies** below for more information about our use of these technologies.
- **Geolocation data**. We may request access or permission to and gather location-based information from your mobile device, either continuously or while you are using our Apps.

- **Information we collect from others**
- **Our service providers**. We may collect personal data from our service providers, including communications and analytics providers, customer and technical support providers, internet service providers, and operating systems and platforms.
- **Social media and other content platforms**. We may collect personal data from platforms such as Meta, X, YouTube, LinkedIn, or Google if you interact with us on these platforms to use the Services.

- **Aggregated, anonymized, and deidentified information**

We may create aggregated, anonymous, or de-identified data from personal data by removing data components that make the data personally identifiable to you or through obfuscation or other means. Our use of aggregated, anonymized and de-identified data is not subject to this Privacy Policy

- **DISCLOSURE OF PERSONAL DATA**

  We may disclose personal data to the following categories of third parties:

- **Our affiliates.** We may share personal data with our business affiliates, in which case, we will require such third parties to comply with the terms of this Privacy Policy.
- **Service providers.** We share personal data with our service providers to provide services on our behalf, such as payment processing, analytics, advertising, hosting, marketing, customer and technical support, and other services. These third parties are well-known, established service providers, who are bound contractually to practice adequate security measures and only use your information for the sole purpose of providing the Services. These third parties do not have independent right to share your personal data.
- **Schools and similar organizations.** We share personal data with the organizations and entities on behalf of which we are providing the Services to you and/or on behalf of which you access or use the Services.
- **Account administrators.** We may disclose personal data to the designated administrator of your account, if you have an individual school or other educational subaccount, regarding use of the Services by individual subaccounts.
- **Compliance and harm prevention.** We reserve the right to disclose personal data if we are required to do so by law or if we believe that disclosure is necessary to protect our rights and/or comply with a judicial proceeding, court order or legal process.
- **Affiliate and business transfers and transactions.** We also reserve the right to transfer your personal data in case of a corporate restructuring (such as a merger or acquisition), as long as the receiving entity adopts this privacy policy that applies to your information. Any future successors must also pledge their commitment to the K-12 School Service Provider Pledge that we have signed and agreed to cooperate with.
- **Third-party platform advertising.** We may disclose your information with third-party platform providers who assist us in serving advertising regarding the Sites and Services to others who may be interested. However, we take steps to avoid the collection and disclosure of personal data for targeted advertising purposes when we believe the Services are being used by children
- **Other third parties.** We may also disclose personal data other third parties with your express consent for any purpose disclosed by us when you provide the information.

  Please note that we may share non-personally identifiable information, including aggregated or anonymized data, with analytics, search engine, or other service providers that help us improve our Services; to report to our affiliates, licensors, and service

providers about the use of various aspects of the Services; and with other users or prospective users of the Services. As stated above, aggregated and anonymized data is not subject to this Privacy Policy.

- **SUMMARY OF OUR DATA USE**

  The chart below is designed to help connect the dots of how and why we may use different types of personal data.

Category of Personal Data	**Collected**		**Processing Purposes**	**Categories of Third-Party Recipients (excluding service providers/processors)**
	Adults	**Children**		
Identifiers, including Name AddressPhone numberEmail addressAccount username and passwordClassroom codeIP address Unique device identifiersMobile app identifiers	Yes	Yes (name, account username and password, and classroom code only)	Provide and maintain the ServicesOperate and improve the ServicesProvide customer serviceAudit, compliance, legal, policy, procedure, and regulatory obligationsProtect and enforce our rights and the rights of othersProtect the safety of our employees and othersCustomer claims and fraud	Third party advertising platforms (adults only, and only to the extent it is collected by online tracking technologies, which you have the option to reject)

				investigation and preventionSystems and data securityInternal analyticsTargeted advertising and marketingOperate, evaluate, and improve our businessInternal business purposes, including general business administration Evaluating or conducting a merger, divestiture, restructuring, reorganization, dissolution, or other sale or transfer of some or all of our assetsAs otherwise described in any notice provided at the time you provide the information For any other		

			purpose for which you may provide consent	
Commercial information, including Information about your interests and preferences, (e.g., Services you have purchased, obtained, or considered)	Yes	No	Same purposes as noted for “Identifiers”	Third party advertising platforms (adults only, and only to the extent it is collected by online tracking technologies, which you have the option to reject)
Financial information, including Bank account numberCredit card numberDebit card numberAny other financial information	Yes	No	Provide and maintain the ServicesInternal business purposes, including general business administration	N/A
Internet or other electronic network activity information, including Browser version, pages of our	Yes	Yes	Same purposes as noted for “Identifiers”	Third party advertising platforms (adults only, and only to the extent it is collected by online tracking technologies, which you

Sites that you visit, the time and date of your visit, the time spent on those pagesContent and information about your communications through the ServicesInformation using cookies and tracking technologies Mobile operating system informationMobile internet browser typeDiagnostic data				have the option to reject)
Geolocation Data, including Global Positioning System ("GPS") dataLocational information based upon your IP addressCell network dataLocational data	Yes	Yes	Internal business purposes, including general business administration Customer claims and fraud investigation and preventionSystems and data securityProte	N/A

collected from various devices including your mobile device(s) or vehicles(s)			ct the safety of our employees and othersInternal analytics	
Audio, electronic, visual, or similar information, including: Any original text you may share on the Services.	Yes	Yes	Same purposes as noted for “Identifiers”	N/A
Characteristics of protected classifications, including: AgeDate of birth or age rangeGender or gender identity	Yes	Yes	For internal business purposes, including general business administration Customer claims and fraud investigation and preventionSystems and data securityProtecting the safety of our employees and othersInternal analytics and product	N/A

			improvements.	
Professional or employment-related information, including: EmployerProfessional licenses or registrations	Yes	No	Same purposes as noted for “Identifiers”	N/A
Sensitive information or sensitive data, including: Account login information	Yes	Yes	Provide customer serviceProvide and maintain the ServiceInternal analyticsMarket our products and servicesMarket the products and services of othersInternal business purposes, including general business administration Audit, compliance, legal, policy, procedure, and regulatory obligationsPro	N/A

			filingFor any purpose consistent with your preferencesProduct improvements	
Inferences about you using any of the above	Yes	Yes	Any of the above purposes	N/A

- **DATA SECURITY**

  We strive to maintain security policies and procedures that are designed to protect your personal data.

  While we strive to maintain best industry-standard privacy and security practices, it should be noted that no method of transmission over the Internet is 100% secure. While we strive to use commercially reasonable security procedures appropriate to the nature of the personal data to reasonably protect it from loss, misuse, unauthorized access, disclosure, alteration or destruction, we cannot guarantee its absolute security. Where applicable, we encourage you to secure your account with a strong password and to keep your password private.

- **DATA RETENTION**

  We will retain your personal data only for as long as is necessary for the purposes set out in this Privacy Policy. We will retain and use your personal data to the extent necessary to comply with our legal obligations (for example, if we are required to retain your data to comply with applicable laws), resolve disputes, and enforce our legal agreements and policies.

  We will also retain certain personal data for internal analysis purposes. This information is generally retained for a shorter period, except when this data is used to strengthen the security or to improve the functionality of our Services, or we are legally obligated to retain this data for longer time periods.

  Our determination of precise retention periods will be based on (i) the length of time we have an ongoing relationship with you; (ii) whether there is a legal obligation to which we

are subject; and (iii) whether retention is advisable in light of our legal position, including regard to applicable statutes of limitations, litigation or regulatory investigations.

- **COOKIES AND OTHER TRACKING TECHNOLOGIES**

  We may use cookies, web beacons, online tracking tools, and similar technologies (collectively, "**cookies**") now or in the future, to support the functionality of our Services. This provides a better experience when you visit our Sites and allows us to improve our Services. We also use and allow third parties to use essential and non-essential cookies on the Sites.

a. **Types of cookies we use**

  The cookies we use generally fall into the following categories:

- **Strictly Necessary Cookies**: These are required for the operation of the Sites. They include, for example, cookies that enable you to log into secure areas. These cookies are session cookies which are erased when you close your browser.
- **Analytics/Performance Cookies**: These allow us to recognize and count the number of users of the Sites and see how such users navigate through the Sites. This helps improve how the Sites work, for example, by ensuring that users can find what they are looking for easily. These cookies are session cookies which are erased when you close your browser.
- **Functional Cookies**: These improve the functional performance of the Sites and make it easier for you to use. For example, cookies are used to remember that you have previously visited the Sites and asked to remain logged into it. These cookies are session cookies which are erased when you close your browser.
- **Targeting Cookies**: These record your visit to the Sites, the pages you visit and the links you follow so we can recognize you and track your activity on the Sites and other websites you visit. These cookies are persistent cookies because they remain on your device for us to use during your next visit to the Sites. You can delete these cookies via your browser settings. We take steps to avoid the use of targeting cookies when we believe the Services are being used by children.

  You may use the tools available on your computer or other device to set your browser to refuse or disable all or some cookies, or to alert you when cookies are being set. However, if you refuse or disable all browser cookies, you may be unable to access certain parts or use certain features or functionality of our Sites.

  You may choose whether to activate automatic recognition when you register for an account. After registration, you may disable the persistent cookie that supports recognition using the tools in your browser. If you choose to disable the cookies that support automatic recognition, you will need to re-enter your username or email and

password each time you access a gated portion of the Services. To learn more about cookies, you can visit http://www.allaboutcookies.org.

- **Analytics information.**

  We may use Google Analytics or other providers for analytics services. These analytics services may use cookies to help us analyze how users use the Sites. For example, Google Analytics is a web analytics service provided by Google that uses first-party cookies to track how visitors use and interact with our Sites. Information generated by these services (e.g., your IP address and other usage information) may be transmitted to and stored by Google Analytics and other service providers on servers in the U.S. (or elsewhere) and these service providers may use this information for purposes such as evaluating your use of the Sites, and compiling statistic reports on the Sites's activity. We then use the information to help us improve our Services. You can opt out of Google Analytics without affecting how you visit our Sites. For more information on how Google uses this data, go to www.google.com/policies/privacy/partners/, or review the Google Analytics Terms of Service at https://www.google.com/analytics/terms/us.html. For more information about opting out of being tracked by Google Analytics across all websites you use, please visit https://tools.google.com/dlpage/gaoptout/.

- **Third Party Ad Networks**

  Certain companies may participate in the Digital Advertising Alliance ("**DAA**") AdChoices Program and may display an Advertising Option Icon for Interest-based Ads that links to an opt-out tool which allows you to exercise certain choices regarding targeting. You can learn more about the DAA AdChoices Program at http://www.youradchoices.com and its opt-out program for mobile apps at http://www.aboutads.info/appchoices.

  In addition, certain advertising networks and exchanges may participate in the Network Advertising Initiative ("**NAI**"). NAI has developed a tool that allows consumers to opt out of certain Interest-based Ads delivered by NAI members' ad networks. To learn more about opting out of such targeted advertising or to use the NAI tool, see http://www.networkadvertising.org/choices/. Please be aware that, even if you are able to opt out of certain kinds of Interest-based Ads, you will continue to receive non-targeted ads. Opting out of one or more NAI or DAA members only means that those selected members should no longer under the NAI/DAA rules deliver certain targeted ads to you. This will affect this and other services, but does not mean you will no longer receive any targeted content and/or ads (e.g., from other ad networks). If your browsers are configured to reject cookies when you visit this opt-out page, or you subsequently erase your cookies, use a different device or web browser(s), or use a non-browser-based method of access (e.g., mobile app), your NAI/DAA browser-based opt-out may not, or may no longer, be effective. Mobile device opt-outs will not affect browser-based

Interest-based Ads even on the same device, and you must opt-out separately for each device.

We are not responsible for the effectiveness of, or compliance with, any third-party opt-out options or programs or the accuracy of their statements regarding their programs. Please note that opting out of advertising networks does not necessarily mean that you will not receive advertisements while using our Sites or on other websites.

- **Do Not Track**

  Some browsers support a Do Not Track (or "**DNT**") feature, a privacy preference that Users can set in certain web browsers, which is intended to be a signal to websites and services that you do not wish to be tracked across different websites or online services you visit. Our Services does not currently recognize or respond to DNT signals, so DNT settings do not change the way the Services operates.

  Please note that we cannot control how third-party websites or online services you visit through our Services respond to Do Not Track signals. Check the privacy policies of those third parties for information on their privacy practices.

- **Global Privacy Control**

  [You may opt out of targeted advertising by broadcasting an Opt-Out Preference Signal, such as the Global Privacy Control (GPC). To download and use a browser supporting the GPC browser signal, click here or visit: https://globalprivacycontrol.org/orgs. Please note that if you do not have an account with us or if you are not logged into your account, your opt out request will be linked to your browser identifier only and not linked to any account information, because the connection between your browser and your account is not known to us.]

- **YOUR CHOICES**

  We offer you certain choices in connection with the information we collect from you.

a. **Promotional email communications**

  You may have the opportunity to receive certain communications from us related to our Services. If you provide us with your email address in order to receive communications, you can opt out of promotional emails at any time by following the instructions at the bottom of our e-mails and adjusting your email preferences. Please note that certain emails may be necessary for the operation of our Services. You will continue to receive these emails, if appropriate, even if you unsubscribe from our optional communications.

- **Updating or Deleting Information**

The accuracy of the information we have about you is very important. Users may update their information at any time by following directions available on the account registration page. Otherwise, to review, correct, or delete your personal data, please contact us at questions@kidsdiscover.com. For more information about your choices, or to review or correct your Personally Identifiable Information, please use the Settings menu within the App or the Website and follow the prompts, or **Contact Us**.

- **STATE-SPECIFIC NOTICES**

  If you are a resident of California, Nevada, Colorado, Connecticut, Iowa, Montana, Nebraska, New Hampshire, New Jersey, Oregon, Texas, and Virginia, you may have certain rights in connection with the information we collect from you.

a. **Notice to California Residents**

  California Civil Code Section 1798.83 ("Shine the Light" Law) permits California residents who have supplied personal data, as defined in Shine the Light Law, to request that we not share your personal data with third parties for their direct marketing purposes. If you are a California resident, please **Contact Us** to request information regarding how we share personal data with third parties for their direct marketing purposes and/or to request that such information not be shared with third parties for such purposes.

- **Notice to Nevada Residents**

  We do not "sell" personal data as that term is defined under Nevada law, but Nevada residents have the right to request to opt out of any future sale of their personal data under Nevada SB 220. If you are a Nevada resident and would like to make such a request, please **Contact Us**. You must include your full name, email address, and postal address in your email or mail request so that we can verify your Nevada residence and respond. In the event we sell your personal data after the receipt of your request, we will make reasonable efforts to comply with such request.

- **Notice to Residents of Certain Other States**

  This Notice applies to residents of Colorado, Connecticut, Iowa, Montana, Nebraska, New Hampshire, New Jersey, Oregon, Texas, and Virginia . The provisions contained within this section, in addition to the disclosures throughout the rest of this Privacy Policy, are intended to provide notices in compliance with the Colorado Privacy Act, the Connecticut Data Privacy Act, the Delaware Personal Data Privacy Act, the Iowa Consumer Data Protection Act, the Montana Consumer Data Privacy Act, the Nebraska Data Privacy Act, the New Hampshire Privacy Act, the New Jersey Privacy Act, the Oregon Consumer Data Privacy Act, the Texas Data Privacy and Security Act, the Utah Consumer Privacy Act, and the Virginia Consumer Data Protection Act. This section does not apply

to certain personal data that is collected from an individual in a business-to-business or employment context.

Our Personal Data Practices.

Detail about what kinds of personal data we may collect or have collected, how we collect it, why we collect it, and who we may disclose it to is found in the **Collection of Personal Data**, **Use of Personal Data**, and **Disclosure of Personal Data** sections of this Privacy Policy.

We may "sell" and/or "share" personal data with third party advertising networks and platforms for purposes of providing targeted behavioral advertising on those platforms. However, as noted above, we take steps to avoid the collection and disclosure of personal data for targeted advertising purposes when we believe the Services are being used by children.

Your Privacy Rights. If you are resident of Colorado, Connecticut, Iowa, Montana, Nebraska, New Hampshire, New Jersey, Oregon, Texas, and Virginia, you may have the following rights under applicable law in relation to your personal data, subject to certain exceptions.

- **Right to Know and Access**. You have the right to, up to twice in a 12-month period, request what personal data we collect, use, disclose, and/or sell, as applicable. You may ask us to provide you a portable copy of this information up to two times in a rolling twelve-month period.

- **Right to Delete**. You have the right to request under certain circumstances the deletion of your personal data that is collected by us.
- **Right to Opt-Out**. You have the right to opt-out of targeted advertising or the sale of your personal data by a business.
- **Right to Correct**. You have the right to request the correction of your inaccurate personal information.
- **Rights Concerning Sensitive Personal Data**. Connecticut, Colorado, Delaware, Montana, Nebraska, New Jersey, Oregon, Texas, or Virginia resident, we cannot process your sensitive personal data, or use your sensitive personal data for certain purposes without your affirmative consent. If you are an Iowa resident, you have the right to opt out of having your sensitive personal data processed and/or used.
- **Right to Non-Discrimination**. You have the right not to receive discriminatory treatment for the exercise of the privacy rights described above.

How to Exercise Your Rights. To exercise any of the above rights, please **Contact Us**. Except where otherwise noted, we will respond to your request within forty-five (45) days after receipt and we reserve the right to extend the response time by an additional

forty-five (45) days when reasonably necessary and provided consumer notification of the extension is made within the first forty-five (45) days. As described below, in some states an authorized agent may submit a request to exercise your rights on your behalf.

We do not charge a fee to process or respond to your verifiable consumer request unless its excessive, repetitive, manifestly unfounded, or in accordance with state-specific requirements. If we determine that the request warrants a fee, we will tell you why we made that decision and provide you with a cost estimate before completing your request. You may only make a verifiable or authenticated consumer request twice within a twelve (12) month period. If we have collected information on your minor child, you may exercise the above rights on behalf of your minor child. Additionally, under some state privacy laws, you may designate an authorized agent to submit a request on your behalf. The request must include:

- Sufficient information that allows us to reasonably verify you are the person about whom we collected personal information or an authorized representative.
- Describe your request with sufficient detail that allows us to properly understand, evaluate, and respond to it.

Any request you submit to us is subject to an identification and residency verification process, as permitted by applicable law. We will not fulfill your request unless you have provided sufficient information that enables us to reasonably verify that you are the consumer about whom we collected the personal information. In order to verify you, you must provide us with your first and last name and email address. These rights are also subject to various exclusions and exceptions under applicable laws.

We will only use personal information provided in a verifiable or authenticated consumer request to verify the requestor's identity or authority to make the request. If you have an account with us, we will deliver our written response to that account. If you do not have an account with us, we will deliver our written response by mail or electronically, at your option.

How to appeal decisions about your rights. You can appeal our decisions concerning privacy rights requests as follows:

- **Colorado residents.** If you are a Colorado resident and want to appeal our decision with regard to a request that you have made, please **Contact Us**. Within forty-five (45) days of receipt of an appeal, we will inform you in writing of any action taken or not taken, including an explanation of our reasons in reaching the decision. If the appeal is denied, you may contact Colorado's Office of the Attorney General by phone at (720) 508-6000 or by submitting a form here.

- **Connecticut residents.** If you are a Connecticut resident and want to appeal our decision with regard to a request that you have made, please Contact Us. Within sixty (60) days of receipt of an appeal, we will inform you in writing of any action taken or not taken, including an explanation of our reasons in reaching the decision. If the appeal is denied, you may contact Connecticut's Office of the Attorney General by phone at (860) 808-5420 or by submitting a form here
- **Delaware residents.** If you are a Delaware resident and want to appeal our decision with regard to a request that you have made, please **Contact Us**. Within sixty (60) days of receipt of an appeal, we will inform you in writing of any action taken or not taken, including an explanation of our reasons in reaching the decision. If the appeal is denied, you may contact Delaware's Department of Justice by phone at (302) 683-8800 or by submitting a form here.
- **Iowa residents**. If you are an Iowa resident and want to appeal our decision with regard to a request that you have made, please **Contact Us**. Within sixty (60) days of receipt of an appeal, we will inform you in writing of any action taken or not taken, including an explanation of our reasons in reaching the decision. If the appeal is denied, you may contact Iowa's Office of the Attorney General by phone at (888) 777-4590 or by submitting a form here.

- **Montana residents.** If you are a Montana resident and want to appeal our decision with regard to a request that you have made, please **Contact Us**. Within sixty (60) days of receipt of an appeal, we will inform you in writing of any action taken or not taken, including an explanation of our reasons in reaching the decision. If the appeal is denied, you may contact Montana's Office of the Attorney General by phone at (406) 444-4500 or by submitting a form here.
- **Nebraska residents.** If you are a Nebraska resident and want to appeal our decision about a request that you have made, please **Contact Us**. Within sixty (60) days of receipt of an appeal, we will inform you in writing of any action taken or not taken, including an explanation of our reasons in reaching the decision. If the appeal is denied, you may contact Nebraska's Office of the Attorney General by phone at (402) 471-2683 or by submitting a form here.
- **New Hampshire residents.** If you are a New Hampshire resident and want to appeal our decision with regard to a request that you have made, please **Contact Us**. Within sixty (60) days of receipt of an appeal, we will inform you in writing of any action taken or not taken, including an explanation of our reasons in reaching the decision. If the appeal is denied, you may contact New Hampshire's Office of the Attorney General by phone at (603) 271-3658 or by submitting a form here.
- **New Jersey residents.** If you are a New Jersey resident and want to appeal our decision with regard to a request that you have made, please **Contact Us**. Within forty-five (45) days of receipt of an appeal, we will inform you in writing of any action taken or not taken, including an explanation of our reasons in reaching the decision. If the appeal is denied,

you may contact New Jersey's Office of the Attorney General by phone at (800) 242-5846 or by submitting a form here.

- **Oregon residents.** If you are an Oregon resident and want to appeal our decision with regard to a request that you have made, please **Contact Us**. Within forty-five (45) days of receipt of an appeal, we will inform you in writing of any action taken or not taken, including an explanation of our reasons in reaching the decision. If the appeal is denied, you may contact Oregon's Office of the Attorney General by phone at (877) 877-9392 or by submitting a form here.
- **Texas residents.** If you are a Texas resident and want to appeal our decision about a request that you have made, please **Contact Us**. Within sixty (60) days of receipt of an appeal, we will inform you in writing of any action taken or not taken, including an explanation of our reasons in reaching the decision. If the appeal is denied, you may contact Texas's Office of the Attorney General by phone at (800) 621-0508 or by submitting a form here.
- **Virginia residents.** If you are a Virginia resident and want to appeal our decision with regard to a request that you have previously made, please **Contact Us** or notify the Office of the Attorney General of Virginia online here. Within sixty (60) days of receipt of an appeal, we will inform you in writing of any action taken or not taken, including an explanation of our reasons in reaching the decision. If the appeal is denied, you may contact Virginia's Office of the Attorney General by phone at (804) 786-2071, written correspondence to 202 North 9th Street, Richmond, Virginia 23219, or online here.

- **CHILDREN'S DATA**

  When a child creates an account, we collect their information in compliance with applicable laws (such as the Children's Online Privacy Protection Act (COPPA)), including by seeking the consent of a parent or legal guardian for creation of that account. When our Services are used by a school in an educational setting, we rely on the school to provide the requisite consent, on behalf of the Parent, for us to collect information from a child under the age of 13 for educational purposes.

  Note that a child's participation or access to our Services cannot be conditioned on the child providing more personal data than is reasonably necessary for that activity. The only personal data collected about students is their first name, last name, username, password, and classroom code. We do NOT collect students' email or physical addresses. We store the Lexile ® Reading Level data that may be set by a teacher, so that our content may be served up dynamically to a reader. We also store student performance on any Kids Discover Online Assessments that have been completed, to provide the educator(s) of those students with data pertaining to student performance. Outside of these uses, student data is not shared, tracked, or analyzed by Kids Discover, nor is it rented, sold, or used by any third-party service providers or marketers. It is saved in our

system to deliver a more optimal reading experience for the students and teachers using the service. It is not used in any other way.

Parents and guardians of children under 13 who use any of our Services have certain rights under COPPA. At any time, parents/guardians using our Services may request to review the personal data we collected from their child, request that we make no further use of that information, or request that we delete it. To exercise your right to delete information, please **Contact Us**. Parents/guardians of children using our Services through a school account should contact their school to exercise their rights and we will work with the parent/guardian and school together to facilitate those requests.

Please note that if you choose to exercise your right to delete information, your child may not be able to participate in our school-related Services. Please also note that we may not be able to delete information in all instances. For example, we may retain certain information as necessary to prevent fraud or future abuse, for recordkeeping or other legitimate business purposes, or if required by law. Retained personal data will remain subject to the terms of this Privacy Policy and our Children's Privacy Notice.

We encourage you to review our Children's Privacy Notice for more information.

1. **LINKS TO THIRD PARTY WEBSITES**

Our Sites (for example, our blog posts) may contain links to third party websites and services. Please note that these links are provided for your convenience and information, and we are not responsible for the content or privacy policies of websites that we do not own or control, and our Privacy Policy does not apply to these third-party websites. We recommend that you review the privacy policies for third-party websites to understand how your personal data may be used by those third parties.

1. **INTERNATIONAL TRANSFERS**

Our Sites are operated and hosted in the United States. If you are accessing our Sites from other jurisdictions, please be advised that you are transferring your personal information to us in the United States. For such transfers, we take the necessary measures to ensure that your personal information receives an adequate level of protection. Please note that the data protection laws in the US which we process personal data may differ from those of your jurisdiction, and in certain circumstances, your personal data may be subject to access requests from governments, courts, law enforcement agencies or regulatory agencies in the US.

1. **CHANGES TO OUR PRIVACY POLICY**

We may change this Privacy Policy from time to time. We will notify you of any changes by posting the revised Privacy Policy on this page. We will let you know via email and/or a prominent notice on our Sites, prior to the change becoming effective and update the "effective date" at the top of this Privacy Policy. We recommend that you review this page periodically.

1. **CONTACT US**

If you have questions or comments relating to this Privacy Policy, or if you would like us to update information we have about you or your preferences, please contact us by email at questions@kidsdiscover.com, or write to us at:

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